

SENATE No. 2346

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to issuance of citations and warnings to vehicle owners without effectuating motor vehicle stops.

PETITION OF:

NAME:

William N. Brownsberger

DISTRICT/ADDRESS:

Suffolk and Middlesex

SENATE No. 2346

By Mr. Brownsberger, a petition (accompanied by bill, Senate, No. 2346) of William N. Brownsberger for legislation relative to issuance of citations and warnings to vehicle owners without effectuating motor vehicle stops. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to issuance of citations and warnings to vehicle owners without effectuating motor vehicle stops.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Clause Twenty-sixth of section 7 of chapter 4 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by adding the following subclause:-

3 (w) Photographs and other personal identifying information collected by cities and towns
4 under chapter 90K.

5 SECTION 2. The General Laws are hereby amended by inserting after chapter 90J the
6 following chapter:-

7 CHAPTER 90K

8 Section 1. As used in this chapter, the following words shall have the following meanings
9 unless the context clearly requires otherwise:

“Law enforcement officer”, a “law enforcement officer” as defined in section 1 of chapter 6E of the general laws.

“Municipal designee”, the municipal entity designated by the city manager in a city with a Plan D or E form of government, the mayor in all other cities or the select board in a town to supervise and coordinate the administration of citations and warnings issued under this chapter.

“Registrar”, the registrar of motor vehicles.

Section 2. If a law enforcement officer witnesses a violation of a traffic law or violation, they may issue a citation or written warning to the owner of the motor vehicle as identified by the license plate of the motor vehicle without effectuating a motor vehicle stop or otherwise identifying the operator of the motor vehicle.

Section 3. (a) Fines imposed pursuant to this chapter shall be the same as if the operator of the vehicle had been identified. Except as provided in section 4, the registered owner of the motor vehicle shall be liable for the fine; provided, however, that a registered owner of a motor vehicle shall not be liable for the fine imposed under this chapter if the operator of the motor vehicle was issued a citation for the violation in accordance with section 2 of chapter 90C.

(b) A violation issued by a city or town under this chapter shall not be made part of the operating record of the person upon whom such liability is imposed, but if the owner of the vehicle is found responsible it shall constitute a moving violation of the motor vehicle laws by the owner for the purpose of determining a surcharge on a motor vehicle premium pursuant to section 113B of chapter 175.

(c) The municipal designee may hire and designate personnel as necessary or contract for services to implement this chapter.

(d) (1) The municipal designee shall provide a notice of violation to the registered owner of a motor vehicle that is identified by a law enforcement officer as having violated a traffic law or regulation. The notice shall include, but not be limited to: (i) a copy of any photographs or other evidence of the violation; (ii) the registration number and state of issuance of the vehicle; (iii) the date, time and location of the violation; (iv) the violation charged; (v) instructions for payment of the fine imposed pursuant to subsection (a); (vi) instructions on how to appeal the violation in writing and to obtain a hearing; and (vii) an affidavit form approved by the municipal designee for the purposes of making a written appeal pursuant to subsection (h).

(2) In the case of a violation involving a motor vehicle registered in the commonwealth, the notice of violation shall be mailed within 30 days of the violation to the address of the registered owner of the motor vehicle as listed in the records of the registrar. If a motor vehicle is registered under the laws of another state or country, the notice of violation shall be mailed within 45 days after obtaining the name and address of the registered owner of the motor vehicle and within 90 days of the violation to the address of the registered owner as listed in the records of the official in the state or country that has charge of the registration of the motor vehicle. If the address is unavailable, it shall be sufficient for the municipal designee to mail a notice of violation to the official in the state or country that has charge of the registration of the motor vehicle.

(3) The notice of violation shall be sent by first class mail in accordance with paragraph (2). A manual or automatic record of mailing processed by or on behalf of the municipal

designee in the ordinary course of business shall be prima facie evidence thereof and shall be admitted as evidence in any judicial or administrative proceeding as to the facts contained therein.

(e) A registered owner of a motor vehicle to whom a notice of violation has been issued pursuant to this chapter may admit responsibility for the violation and pay the fine provided therein. Payment of the established fine shall operate as the final disposition of the violation; provided, however, that payment by a registered owner of a motor vehicle shall operate as the final disposition of the violation as to any other registered owner of the same motor vehicle for the same violation.

(f) Not more than 60 days after a violation under this chapter, a registered owner of a motor vehicle may contest responsibility for the violation in writing by mail or online. The registered owner shall provide the municipal designee with a signed affidavit, in a form approved by the municipal designee, stating the: (i) reason for disputing the violation; (ii) full legal name and address of the registered owner of the motor vehicle; and (iii) full legal name and address of the operator of the motor vehicle at the time the violation occurred. The registered owner may include signed statements from witnesses, including the names and addresses of witnesses, supporting the registered owner's defense. Not more than 21 days after receipt of the signed affidavit, the municipal designee or the hearing officer shall send the decision of the hearing officer, including the reasons for the outcome, by first class mail to the registered owner. If the registered owner is found responsible for the violation, the registered owner shall either pay the fine in the manner described in subsection (e) not more than 14 days after the issuance of the decision or request further judicial review pursuant to section 14 of chapter 30A.

(g) In lieu of contesting responsibility for a violation in writing or online pursuant to subsection (f) and not more than 60 days after a violation under this chapter, a registered owner of the motor vehicle may request a hearing to contest responsibility for a violation. A hearing request shall be made in writing by mail or online. Upon receipt of a hearing request, the municipal designee shall schedule the matter before a hearing officer. The hearing officer may be an employee of the municipal designee or such other person as the municipal designee may designate. Written notice of the date, time and place of the hearing shall be sent by first class mail to each registered owner of the motor vehicle. The hearing shall be informal, the rules of evidence shall not apply and the decision of the hearing officer shall be final subject to judicial review pursuant to section 14 of chapter 30A. Not more than 21 days after the hearing, the municipal designee or the hearing officer shall send the decision of the hearing officer, including the reason for the outcome, by first class mail to the registered owner. If the registered owner is found to be responsible for the violation, the registered owner shall either pay the fine in the manner described in subsection (e) not more than 14 days after the issuance of the decision or request further judicial review pursuant to said section 14 of said chapter 30A.

(h) The municipal designee shall notify the registrar when a registered owner of a motor vehicle to whom a notice of a violation has been issued: (i) fails to contest the responsibility for a violation pursuant to subsection (f) or subsection (g) and fails to pay the fine in the notice in accordance with subsection (e) within 60 days of the violation; or (ii) is found responsible for the violation and does not pay the fine in accordance with subsection (f) or subsection (g). Upon being notified by the municipal designee, the registrar shall place the matter on record. Upon receipt by the registrar of 3 or more of such notices, the registrar shall not issue or renew the registered owner's motor vehicle registration until after notification from the municipal designee

of each city or town from whom the registrar received notification that all fines owed pursuant to this chapter have been paid. The municipal designee shall notify the registrar immediately when a fine that is the basis for a notice to the registrar under this subsection has been paid; provided, however, that certified receipt of full and final payment from the municipal designee issuing a violation shall also serve as legal notice to the registrar that a violation has been disposed of in accordance with this chapter. The certified receipt shall be printed in such form as the registrar may approve.

Section 4. (a) Notwithstanding section 3, if the registered owner of a motor vehicle is a person or entity engaged in the business of leasing or renting motor vehicles and the motor vehicle was operated under a rental or lease agreement at the time of the violation, this section shall be applicable and the registered owner shall not be liable for any unpaid fines if the registered owner has complied with the requirements of this section.

(b) The municipal designee shall provide notice in writing of each violation to the registered owner of a motor vehicle if a motor vehicle owned by the registered owner is involved in a violation.

(c) Not more than 45 days after the violation, the registered owner shall furnish to the municipal designee, in writing, the name and address of the lessee or rentee of the motor vehicle at the time of the violation, the lessee's or rentee's driver's license number, the state that issued the driver's license and the lessee's or rentee's date of birth.

(d) Upon receipt of the information required under subsection (c), the municipal designee shall issue a notice of a violation to the lessee or rentee in the form prescribed by section 3 and the lessee or rentee shall be liable for the violation.

(e) The municipal designee shall notify the registrar if the lessee or rentee to whom a notice of violation has been issued: (i) fails to contest the responsibility for a violation pursuant to either subsection (f) or subsection (g) of section 3 and fails to pay the fine in the notice in accordance with subsection (e) of said section 3 within 90 days of obtaining the name and address of the lessee or rentee; or (ii) is found responsible for the violation and does not pay the fine in accordance with said subsection (f) or said subsection (g) of said section 3. Upon being notified by the municipal designee, the registrar shall place the matter on record.

Upon receipt by the registrar of 5 or more of such notices under this section, the registrar shall: (i) not renew the license of the lessee or rentee to operate a motor vehicle in the commonwealth; or (ii) suspend the right to operate of a lessee or rentee not licensed in the commonwealth until the registrar receives notification from each applicable municipal designee that all fines owed by the lessee or rentee pursuant to this chapter have been paid. The municipal designee shall notify the registrar immediately when a fine that is the basis for a notice to the registrar under this subsection has been paid; provided, however, that certified receipt of full and final payment from the municipal designee issuing a violation shall also serve as notice to the registrar that the violation has been disposed of in accordance with this chapter; provided further, that the certified receipt shall be printed in such form as the registrar may approve.

SECTION 3. Not later than 90 days from the effective date of this act, the Massachusetts Department of Transportation shall promulgate regulations to implement chapter 90K of the General Laws. The regulations shall include but not be limited to establishing standardized forms for notices of violations and written warnings.

140 SECTION 4. The secretary of public safety and security shall investigate and study
141 alternative methods for matching drivers license records, motor vehicle registration records, and
142 the violation notices under this chapter for the purposes of identifying any patterns of race or
143 gender discrimination. The secretary shall file a report with the results of the investigation and
144 study together with legislation, if any, with the joint committee on transportation not later than
145 April 1, 2027.